



Background Guide

United States Senate

Agenda :

Consideration of H.R. 7296 / S. 3752, the SAVE America Act, to amend the National Voter Registration Act of 1993 to require documentary proof of citizenship for federal election registration.

Letter from the Executive Board

ESTEEMED Delegates,

Welcome to the committee.

You have been handed one of the biggest questions in American politics: who gets to vote, and how much proof should the state ask for before it believes someone? That is what this bill, the SAVE America Act, is really about.

This guide is written to be neutral. Voting rules are a subject people feel strongly about, and this debate is told very differently depending on who is doing the telling. Our job as your Executive Board is not to tell you who is right. It is to give you an accurate map of the law, the numbers, and the people involved, so you can build your own arguments. Where a fact is genuinely disputed, we say so plainly. You should do the same in debate: name the disagreement, then make your case.

A word on the agenda-this bill does not decide who is allowed to vote , that is already settled by law. It decides how hard it should be to prove you are allowed to vote. We hope that you do your research and read the entire background guide, and look forward to your debate. All the best to every delegate for the conference.

The Executive Board

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I. COMMITTEE OVERVIEW

Role of the United States Senate

The Senate is the upper chamber of Congress, established under Article I of the Constitution, composed of two Senators from each state regardless of population, serving staggered six-year terms with roughly one-third of the chamber facing election every two years. The Senate shares full law-making power with the House of Representatives — a bill must pass both chambers in identical form and be signed by the President (or have a presidential veto overridden by two-thirds of both chambers) to become law. On matters of federal election administration, the Senate's authority derives principally from Article I, Section 4 (the Elections Clause), discussed in detail in Section 4 below.

Beyond ordinary lawmaking, the Senate holds several powers the House does not: confirmation of presidential nominees (including federal judges and cabinet officers), ratification of treaties by two-thirds vote, and the sole power to try impeachments. None of these unique powers is directly implicated by this agenda, but they inform why the Senate is institutionally built for deliberation and delay rather than rapid majoritarian action — a design choice that matters enormously for how this bill can realistically move.

Mandate of the Committee: THE UNITED STATES SENATE

The Senate's core constitutional functions include: the introduction, amendment, and passage of legislation; the "advice and consent" power over treaties and presidential nominations (including federal judges and cabinet officials); the sole power to try impeachments; and, under Article I, Section 4 (the Elections Clause), a specific and important role in regulating the times, places, and manner of federal elections — a power Congress has historically used to preempt conflicting state election laws.

Because this committee is simulating a single chamber rather than a joint body, delegates should understand what a Senate committee can and cannot do procedurally. A bill referred to committee may be marked up, amended, reported favorably, reported unfavorably, or left to die without a vote. Once reported, a bill proceeds to the Senate floor, where it is subject to unlimited debate unless sixty Senators invoke cloture to end debate — the mechanism popularly known as "the filibuster." This threshold is the single most important procedural fact governing this agenda: no matter how a party's majority feels about the SAVE America Act, passage in the ordinary legislative process requires a supermajority that neither party has held in recent Congresses.

Scope of Deliberation

The committee's deliberation is confined to what a Senate committee and, ultimately, the full Senate can lawfully and procedurally do: amend the National Voter Registration Act's registration provisions; define documentary proof of citizenship; set enforcement mechanisms, penalties, and safe harbors; appropriate or authorize implementation funding; and decide whether to advance the bill as ordinary legislation (requiring 60 votes for cloture) or restructure relevant provisions for the budget reconciliation process (requiring only a simple majority, but subject to the Byrd Rule's restriction on non-budgetary content). The committee is not a forum for amending the Constitution, overturning a Supreme Court holding by legislative fiat, or compelling the House to adopt identical language — the House must independently act on its own companion bill.

Understanding the Senate through the present agenda:

Under this agenda, the Senate's task is not to decide, in the abstract, whether voter fraud by noncitizens is a serious national problem — that is a factual and political dispute delegates will contest through evidence and argument. The Senate's task is to decide whether, and how, to legislate a documentary proof-of-citizenship requirement into the federal voter registration system, and to do so in a way that can actually clear the sixty-vote threshold or survive the reconciliation process.

This means delegates must operate on two tracks simultaneously: the substantive policy track (what should the law require, and what safeguards should it include) and the procedural track (how does this bill actually become law given the current composition and rules of the Senate). A resolution — in this case, a passed bill or an amended substitute — that ignores the procedural realities of the modern Senate will not reflect a realistic simulation outcome.

II. COMMITTEE PROCEDURE

Opening of the Session

The Chair will call the committee to order, confirm a quorum, and establish the speakers list for general debate.

Recognition of Senators

Senators are recognized by the Chair in the order established by the speakers list or by motion, consistent with simulated Senate norms of deference to seniority and relevance.

Presentation of the Legislation

The bill's sponsor(s) — Senators assigned as Senator Lee or co-sponsors — may open with a statement of purpose before general debate begins.

Questions to Witnesses

If the Dais incorporates a witness or expert-testimony format, Senators may pose direct questions within allotted time.

General Debate

Structured speaking time on the bill as a whole, prior to the amendment process, allowing Senators to lay out their positions and coalition preferences.

Amendment Process

Senators may propose amendments to the bill text; amendments are debated and voted upon individually before a final vote on the bill as amended, consistent with Senate practice of open amendment on most legislation (subject to the Dais's own rules of procedure for this simulation).

Motion and Voting Procedure

Standard motions include motions to amend, to divide the question, to table, to invoke cloture (simulating the 60-vote threshold), and to report the bill from committee.

Committee Markup

A formal markup session allows the committee to finalize bill text before any simulated floor vote.

Final Committee Vote

A vote to report the bill (favorably, unfavorably, or without recommendation) concludes the committee's primary business, with the possibility of a subsequent simulated floor/cloture vote at the Dais's discretion.

(An indepth Rules of Procedure document will be shared)

III. Introduction to the Agenda

On January 29, 2026, Senator Mike Lee of Utah introduced S. 3752, the SAVE America Act, together with Senators Rick Scott, Ted Budd, Jim Banks, and Kellie Moody. The bill would change the National Voter Registration Act of 1993 , the law that has governed voter registration for three decades , in two ways. First, it would require documents proving U.S. citizenship before anyone can register to vote in a federal election. Second, it would require a photo ID to actually cast a ballot.

This is the Senate version of a fight that has already played out twice in the House. The House passed the original SAVE Act 220-208 in April 2025, then passed this bigger version 218-213 in February 2026. Neither version has the sixty votes needed to survive a Senate filibuster. That is exactly why this committee exists: the Senate, not the House, decides whether this bill lives or dies.

Why This Matters

Supporters make one simple argument: only citizens should decide American elections, and the government should be able to prove that , not just take someone's word for it. Opponents make an equally simple argument back: the bill solves a problem that barely exists, while creating a very real burden for tens of millions of citizens who don't have a passport or an original birth certificate sitting in a drawer.

IV. Road to the Committee

How We Got Here: A Simple Timeline-

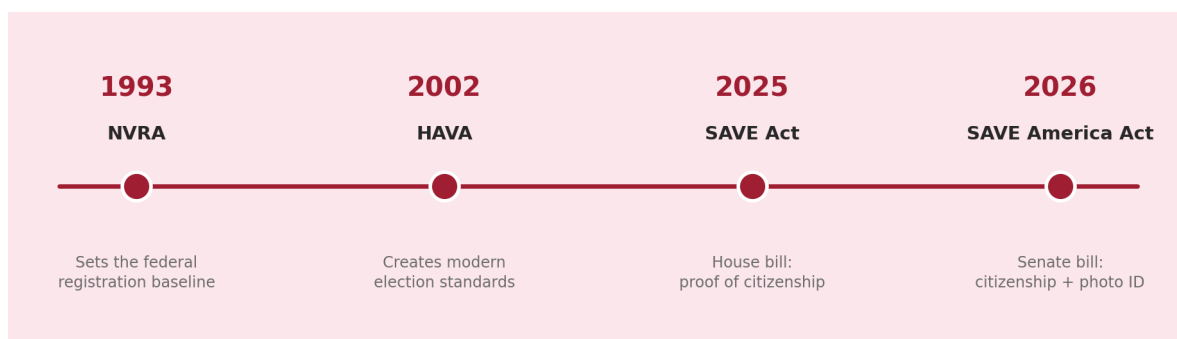


Figure 1. The federal government has touched voter registration three times since 1993 , this bill would be the fourth.

What Each Law Actually Did

- 1993 - The National Voter Registration Act (“Motor Voter”) made registering to vote as easy as renewing a driver's license.

- 2002 - The Help America Vote Act modernized voting machines and created new state-level standards after the 2000 election.
- 2025 - The House passed the original SAVE Act, requiring proof of citizenship to register.
- 2026 - The Senate is now debating a bigger version: the SAVE America Act, which adds a photo ID requirement at the polls on top of proof of citizenship.

Here is the bill's path so far, and where it stands today.

Date	Event
Apr. 10, 2025	The House passes the original SAVE Act, 220–208.
Jan. 29, 2026	Sen. Mike Lee introduces S. 3752 in the Senate.
Jan. 30, 2026	Rep. Chip Roy introduces a House companion bill, H.R. 7296.
Feb. 10, 2026	The House Rules Committee advances the bill, 9–4.
Feb. 11, 2026	The House passes the SAVE America Act, 218–213.
Mar. 18–19, 2026	Senator Lee opens floor debate in the Senate.

Sources: Congressional Research Service, CRS In Focus IF12902 (Feb. 24, 2026); Congress.gov, S. 3752 and H.R. 22 bill pages.

V. The Bill: What It Actually Says

S. 3752 is formally titled “A bill to amend the National Voter Registration Act of 1993 to require proof of United States citizenship to register an individual to vote in elections for Federal office, and for other purposes.” Delegates are strongly encouraged to read the full 29-page bill text at [congress.gov/bill/119th-congress/senate-bill/3752/text](https://www.congress.gov/bills/119/congress/senate/bills/3752/text) before committee. The bill's full name is long, but its idea is simple: no documents, no registration. Here is what that means in practice, based on the official bill text.

1. Proof of Citizenship to Register

States could not accept a federal voter registration , by mail, at the DMV, or anywhere else , unless the applicant shows documentary proof of citizenship. Today, applicants just sign a form saying they're a citizen. This bill would require a document, every time.

2. What Counts as Proof

Only a short list qualifies: a REAL ID that specifically shows citizenship, a U.S. passport, a certified birth certificate, or naturalization papers. A normal driver's license , what most Americans actually carry , does not count on its own.

3. An Alternative Process, With Conditions

Citizens who lack these documents , say, because of a lost record or a name change , would go through an alternative sign-off process, with rules set by the **Election Assistance Commission**. States must also make accommodations for disabled applicants and for name mismatches.

4. Photo ID at the Polls

Separately, the bill would require photo ID to actually vote.

5. Removal of Ineligible Registrants

States must establish a program to identify and remove individuals determined not to be U.S. citizens from official voter rolls, with due-process procedures (notice and an opportunity to respond) built into the bill's text to reduce the risk of erroneously purging eligible citizens.

6. Verification and Election Administration

The bill directs states to use data-matching resources — including Department of Homeland Security systems such as SAVE (Systematic Alien Verification for Entitlements) — to cross-check registrant citizenship status on an ongoing basis, not merely at the point of initial registration.

VI. ARGUMENTS IN SUPPORT OF THE LEGISLATION

1. Ensuring Only Eligible Citizens Register

Supporters argue that registration is the appropriate, least-disruptive point in the process to verify a fundamental legal qualification for voting, rather than relying solely on a post-hoc perjury deterrent.

2. Strengthening Election Integrity

Supporters frame documentary verification as building public confidence in election outcomes, independent of the actual measured incidence of noncitizen voting, on the theory that a verifiable system is inherently more trustworthy than an attestation-based one.

3. Standardizing Federal Election Requirements

A single federal standard, supporters argue, replaces an inconsistent patchwork of state-level rules with uniform national practice, reducing confusion for voters who move between states and for officials administering federal elections.

4. Increasing Public Confidence

Polling cited by supporters suggests broad public support, across party lines, for some form of identity verification in elections, and supporters argue Congress should not be the outlier institution resisting a policy the electorate broadly favors.

5. Improving Voter Roll Accuracy

Supporters argue mandatory ongoing list-maintenance provisions would produce cleaner, more accurate voter rolls independent of the citizenship question specifically, addressing longstanding administrative concerns about outdated or duplicate registrations.

VII. ARGUMENTS AGAINST THE LEGISLATION

1. Potential Burden on Eligible Voters

Opponents' central argument is the scale of the documentation gap — an estimated 140 million citizens without a passport — set against the negligible measured rate of noncitizen registration the bill purports to solve.

2. Documentation Accessibility

Opponents point to the cost, time, and travel required to obtain qualifying documents as a practical, if not technically a poll-tax, barrier to registration.

3. Federalism Concerns

Some opponents, including from a states'-rights perspective, argue the bill intrudes on the constitutional balance struck in *Arizona v. ITCA* by nationalizing a requirement the Court specifically limited a single state from imposing unilaterally, raising the unresolved legal

question of whether Congress's own exercise of this power is likewise vulnerable to challenge.

4. Administrative and Financial Costs

Opponents argue the bill, without dedicated federal funding, functions as an unfunded mandate on state and local election offices already under-resourced.

5. Potential Effects on Voter Participation

Opponents point to Kansas's experience — more than 30,000 otherwise-eligible Kansans blocked from registering over several years under a comparable state-level law — as direct evidence of the participation risk a poorly implemented nationwide version could reproduce at far greater scale.

6. Election-Day and Same-Day Registration

States that permit registration at the polls on Election Day or during early voting face a particular design challenge under the bill: same-day registrants would need to produce documentary proof at the polling place itself, a significant departure from current practice in same-day registration states and one of the more operationally difficult provisions to implement without long lines or turned-away voters.

7. Voter Registration Agencies

Public assistance and disability-services agencies designated as NVRA voter registration agencies would likewise be required to collect or direct applicants to provide documentary proof, raising capacity questions for agencies not currently equipped to verify identity documents.

8. Effective Date and Transition

The bill as introduced does not provide a lengthy phase-in period, which election administrators have flagged as a significant operational risk given the scale of systems, staff training, and public education that a nationwide rollout would require.

What the Bill Does Not Do

It's worth being precise, because floor debate often blurs this. The bill does not change who is allowed to vote, noncitizens are already barred from federal elections under existing law, and have been for the Republic's entire history. It does not take over elections from the states, states still run elections under the Constitution's Elections Clause. And it says nothing about state or local elections, which stay under state law.

Sources: Congress.gov, text of S. 3752; GovTrack.us summary (CRS, Feb. 24, 2026).

VIII. CONSTITUTIONAL AND LEGAL FRAMEWORK

1 Constitutional Authority over Federal Elections

Authority over federal elections in the United States is constitutionally divided between the states and Congress in a way that is central to this entire agenda. States retain primary responsibility for administering elections and, under the Qualifications Clauses, for defining who is qualified to vote. Congress retains a distinct and separately sourced power to regulate the "times, places, and manner" of federal elections. Understanding where documentary proof of citizenship falls on this spectrum — a "qualification" (state turf) or a "manner" regulation (congressional turf) — is the legal crux of the SAVE America Act.

2 Article I, Section 4 — The Elections Clause

The Elections Clause provides that the times, places, and manner of holding elections for Senators and Representatives shall be prescribed in each state by its legislature, but that Congress may at any time by law make or alter such regulations, except as to the place of choosing Senators. This is the clause under which the original NVRA was enacted in 1993, and it is the clause the Supreme Court relied upon in striking down Arizona's unilateral documentary proof-of-citizenship law in 2013. It is also the clause under which H.R. 7296/S. 3752 would be enacted, this time as an act of Congress itself rather than a single state's initiative — a materially different posture that has never been definitively tested in court.

3 Fourteenth Amendment

The Fourteenth Amendment's Equal Protection Clause has been invoked in litigation over documentary proof-of-citizenship laws, most notably in the Kansas litigation, where a federal district court found that a state's documentary proof requirement violated equal protection principles by disproportionately burdening eligible citizens relative to the negligible rate of actual noncitizen registration it prevented. Delegates opposing the bill should understand this as a live line of constitutional attack; delegates supporting the bill should understand how to draft around it (for instance, through robust alternative-verification and cure processes).

4 Fifteenth Amendment

The Fifteenth Amendment prohibits denial or abridgment of the right to vote on account of race, color, or previous condition of servitude, and empowers Congress to enforce this

guarantee through appropriate legislation. Civil rights organizations have argued that documentary proof-of-citizenship requirements have a disparate impact on communities of color and naturalized citizens, raising this amendment as a backdrop concern even though it is not the primary constitutional battlefield for this bill.

5 Twenty-Fourth Amendment

The Twenty-Fourth Amendment prohibits conditioning the right to vote in federal elections on payment of a poll tax or other tax. While the SAVE America Act does not impose a direct fee, opponents argue that the practical cost of obtaining a passport, birth certificate, or other qualifying document functions as a de facto financial barrier for citizens without existing documentation — an argument proponents dispute given that REAL ID-compliant identification, already held by most Americans, would qualify.

6 Twenty-Sixth Amendment

The Twenty-Sixth Amendment guarantees the right to vote to citizens eighteen years of age or older and prohibits its abridgment on account of age. This amendment is relevant primarily to concerns about newly-eligible young voters, who are statistically less likely to hold a passport or REAL ID-compliant license and more likely to be registering for the first time away from their home address, a population election administrators have flagged as particularly exposed to documentation friction under the bill.

7 National Voter Registration Act of 1993

The NVRA (52 U.S.C. ch. 205), commonly called "Motor Voter," was signed into law in 1993 and became effective in 1995. It requires states to offer voter registration at motor vehicle offices and certain public assistance agencies, permits registration by mail, and directs the Election Assistance Commission to design a uniform "Federal Form" that states must "accept and use." The Federal Form requires an attestation of citizenship under penalty of perjury but no documentary proof — the exact baseline the SAVE America Act would overturn nationwide.

8 Help America Vote Act

The Help America Vote Act of 2002 (HAVA) was enacted in the aftermath of the 2000 presidential election to modernize election administration. It created the Election Assistance Commission, established minimum standards for voting equipment and provisional ballots, and required first-time voters who registered by mail to show identification the first time they vote if they had not already provided verifying information at registration. HAVA's identification provisions are the closest existing federal analogue to the documentary-proof requirement now proposed, and its "first-time voter" ID requirement is frequently cited in this debate as evidence that some federal

identity-verification infrastructure already exists and could be built upon rather than replaced wholesale.

9 Relevant Federal Election Law

Beyond the NVRA and HAVA, delegates should be aware of the Voting Rights Act of 1965 (particularly Section 2's prohibition on election practices that result in denial or abridgment of the right to vote on account of race), the Uniformed and Overseas Citizens Absentee Voting Act (UOCAVA), which governs registration and voting for military and overseas citizens and is directly implicated by any new documentary-proof requirement, and the Immigration and Nationality Act, which the bill references for defining acceptable citizenship documentation issued by the Department of Homeland Security.

IX. ELECTION SECURITY AND ELECTORAL INTEGRITY

1 Preventing Non-Citizen Registration

Proponents' central security rationale is closing what they characterize as a verification gap that leaves the system reliant on self-attestation alone.

2 Accuracy of Voter Rolls

Supporters argue mandatory ongoing data-matching and list-maintenance requirements in the bill would materially improve roll accuracy beyond what NVRA's existing (attestation-based) list-maintenance provisions achieve.

3 Protection of Election Systems and Databases

Any expansion of centralized citizenship and voter data-matching raises independent cybersecurity and privacy considerations, since aggregating sensitive personal data across DHS, SSA, and state systems creates a larger attack surface and a higher-value target.

X. STAKEHOLDER PERSPECTIVES

1 Federal Government

The executive branch has publicly and strongly endorsed the SAVE America Act, with the White House explicitly framing the bill as bringing U.S. practice in line with international norms and directing states to remove noncitizens from voter rolls.

2 State Election Officials

State election officials are divided by party but share cross-partisan operational concerns about implementation timelines, funding, and liability exposure for officials acting in good faith — concerns raised even by some officials who support the underlying policy goal.

3 Local Election Administrators

County and municipal election administrators, who would bear the frontline implementation burden, have flagged particular concern over same-day registration procedures, mail-registration in-person delivery requirements, and staff training needs ahead of major federal election cycles.

4 Civil Rights Organizations

Organizations including the ACLU and the League of Women Voters have opposed the bill, citing the Kansas litigation as precedent for the scale of disenfranchisement risk and framing the measure as addressing a statistically negligible problem at a high cost to eligible voters.

5 Election Integrity Organizations

Organizations supporting stricter election-integrity measures argue current self-attestation is an inadequate safeguard as a matter of principle, regardless of the measured current incidence of noncitizen voting, and that verification systems should be built proactively rather than reactively.

6 Voting Rights Advocates

Voting rights advocates broadly argue that the burden of proof should rest on demonstrating a genuine, substantial problem before imposing a nationwide documentation requirement, pointing to the Tenth Circuit's finding in the Kansas case that Kobach's own claims of noncitizen registration on the order of 18,000 individuals could not be substantiated at trial.

7 State Governments

State legislatures themselves are divided, with several Republican-led states having already enacted their own state-level proof-of-citizenship requirements (for state and local elections, per *Arizona v. ITCA*) and generally supportive of a federal standard, while several Democratic-led states have taken the opposite approach, expanding automatic and same-day registration and opposing additional documentation burdens.

8 Voters and Eligible Citizens

Ultimately, the population most directly affected — the roughly tens of millions of citizens without immediately available qualifying documentation — is the constituency this committee must weigh most carefully in assessing whether any given draft of this bill strikes an appropriate balance. Some of them likely to be affected are as follows:

- Low-Income and Rural Voters

Obtaining a certified birth certificate or passport often requires a fee and, in rural areas, travel to a distant government office — a combination of cost and logistical burden that falls disproportionately on lower-income and rural citizens.

- Elderly Voters

Older Americans, particularly those born at home rather than in a hospital in the early-to-mid twentieth century, are statistically more likely to lack a ready-to-hand birth certificate, a documented concern in prior debates over similar state-level laws.

- Military and Overseas Voters

Service members and citizens living abroad face particular friction given UOCAVA's expedited registration and voting timelines, which the in-person document delivery requirement is difficult to reconcile with; the bill's military ID exception partially, but not fully, addresses this population.

- Native American Voters

Voters living on tribal lands, some of whom lack a traditional street address or standard-format government identification, have historically faced disproportionate barriers under state ID and proof-of-citizenship laws; the bill's KIC-card provision addresses a narrow subset of this population but not tribal citizens broadly.

XI. FISCAL AND ADMINISTRATIVE IMPACT

1 Federal Costs

Costs to the federal government include EAC guidance development, DHS/SSA data-system upgrades, and any dedicated grant program Congress chooses to attach to the bill.

2 State and Local Costs

Costs to states and localities include staff training, new verification technology, public education campaigns, and potential litigation exposure — costs that fall disproportionately on smaller, under-resourced jurisdictions.

3 Election Administration Resources

Implementation would require significant lead time relative to federal election cycles; a mandate taking effect close to a general election risks operational chaos regardless of the underlying policy's merits.

4 Technology and Database Requirements

Effective implementation depends on interoperability between DHS, SSA, state DMV, and state vital-records systems that, as of this agenda's drafting, is uneven across the country.

5 Implementation Timeline

A realistic bill should specify a clear effective date, ideally tied to election cycles rather than a fixed calendar date, to allow adequate preparation.

XII. The National Voter Registration Act, and Its Concerns:

To understand what this bill would change, you first need to understand the law it changes. The National Voter Registration Act (NVRA), signed in 1993, is commonly called “Motor Voter” because its best known rule makes every driver's license application double as a voter registration form.

What the NVRA Requires

- Motor Voter- driver's license applications double as registration, unless you opt out.
- Mail registration states must accept a standard national mail, in form.
- Agency registration , public assistance offices must offer registration to every client.
- List maintenance , states can't remove a voter just for moving, without extra steps and time.

Six states , Idaho, Minnesota, New Hampshire, North Dakota, Wisconsin, and Wyoming , are exempt, because they already had same day registration when the law passed.

“Its Concerns,” As Each Side Sees Them

The Conservative Critique	The Progressive Critique
Right now, you can register just by signing a form “under penalty of perjury” , no document is ever checked. That's too easy to fake, and too hard to catch after the fact.	Decades of audits show noncitizen registration is real but extremely rare. The actual unsolved problem is the opposite one: too many eligible citizens still aren't registered.

Sources: U.S. Department of Justice, Civil Rights Division, NVRA overview; Public Law 103,31.

XIII. Geography of the Debate: Immigration and Federalism

This agenda can't be separated from the bigger immigration debate, even though the bill only touches citizens who are already eligible to vote.

Federalism: Whose Election Is It?

The Constitution lets states run the “times, places, and manner” of federal elections , but also lets Congress override state rules for federal elections specifically. That's the hook this bill relies on. Critics say it's still a big federal intrusion into a space states have always controlled.

States Already Testing This

Several states have already tried their own proof-of-citizenship laws. Arizona has required it since 2004. Kansas tried it from 2013 to 2018. New Hampshire, Louisiana, Florida, South Dakota, and Utah have more recent versions. These states are the real world test cases that delegates should study.

Immigration as Backdrop

Don't confuse two things with the same name: the SAVE America Act, and the separate federal SAVE database that some states use to check voter rolls against immigration records. They are not the same thing. Be precise about which “SAVE” you mean.

Federal Standards versus State Election Authority

The core federalism question for this committee is not whether Congress *can* legislate here — *Arizona v. ITCA* answers that in the affirmative for the "manner" of federal elections — but whether the specific design of this bill respects states' administrative capacity and residual authority over non-federal elections, or whether it imposes a one-size-fits-all federal standard that overrides functioning state systems without adequate federal support.

XIV. The Political Landscape

This debate isn't happening in a vacuum. A few things going on around it matter for how your senator will actually vote.

Budget Reconciliation

This summer, the House packaged election-related funding into a budget bill that only needs a simple majority to pass , not sixty votes. Some senators are now asking whether it's smarter to fold parts of this bill into that budget process instead of passing it on its own.

The Name-Matching Problem

Advocacy groups have flagged a narrower issue: transgender Americans whose current ID doesn't match their birth certificate face an extra, hard version of the documentation problem, since fixing a birth certificate can require court orders or fees that vary by state.

Public Opinion vs. the Evidence

Here's the tension at the heart of this whole debate. The idea polls extremely well. The evidence behind it is extremely thin. Hold both facts at once. *Sources: Gallup, Oct. 2024 poll; CDCE/University of Maryland research.*

XV. Senators' Powers: Independence Within the Party

A common mistake in Model UN Senate committees is treating every delegation like a guaranteed party line vote. The real Senate doesn't work that way, and this committee rewards delegates who understand why.

- Six-year terms mean senators face less constant re-election pressure than House members.
- Each senator represents a whole state, not one district , so their incentives often don't match their party's national platform.
- Senators can and do break from leadership without real punishment.
- A single senator can use a hold, an amendment, or a filibuster threat to win concessions no House member could get alone.

XVI. The Spectrum: Progressive, Moderate, Conservative

Debate will go further if you think in terms of a spectrum, not a simple yes-or-no. Here are three broad lanes , remembering that real senators often blend more than one.

Position	Core Concern	Preferred Fix
Progressive	The real risk is eligible citizens losing access, not noncitizens voting , which audits show is very rare.	Expand access; strengthen enforcement of the current law instead of adding new document rules.
Moderate	Some tightening makes sense, but a blunt paper,document rule risks real disenfranchisement.	Check registrants against databases the government already has (SSA, DHS) instead of requiring paper documents.

Position	Core Concern	Preferred Fix
Conservative	Proof of citizenship is a baseline safeguard, no matter how rare fraud is today.	One national standard, written into federal law, that no state can opt out of.

XVII. The Documentation Gap: A Data Deep Dive

The single most important question in this debate: how many eligible citizens would actually struggle to produce these documents? Here is the best available data.

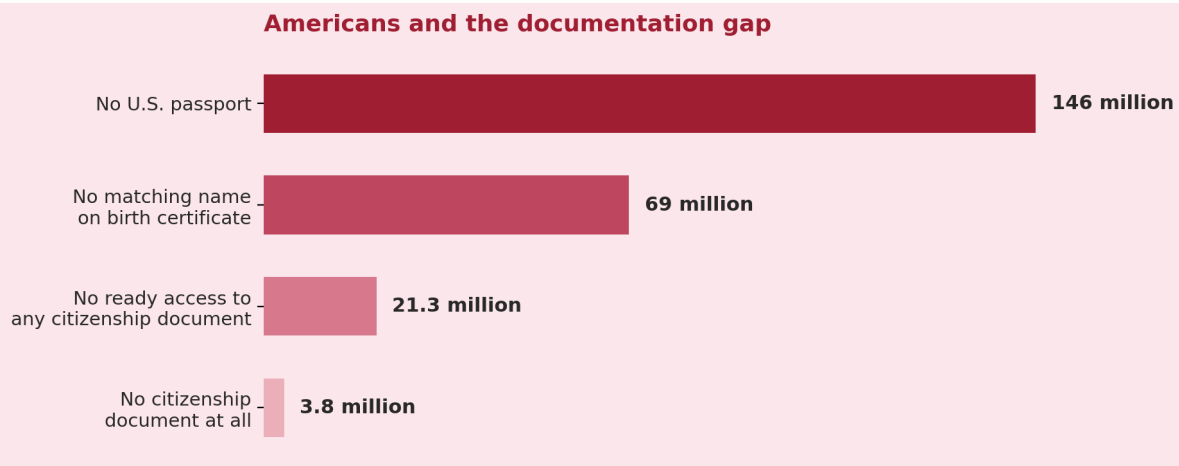


Figure 2. Different surveys measure different things , but every measure finds a real gap.

A 2024 Brennan Center survey found that 9.1% of voting age citizens , about 21.3 million people , could not quickly produce a passport, birth certificate, or naturalization certificate if asked tomorrow. Of those, 3.8 million have no such document at all. A separate Bipartisan Policy Center analysis, using a broader definition that includes photo ID, put the number closer to 28 million.

Why the Numbers Differ

Both numbers are legitimate , they just measure slightly different things. The Brennan Center asks about any qualifying document. The Bipartisan Policy Center asks about documents and a photo ID together. Since this bill's document list is narrower than either survey, most analysts treat both figures as floors, not ceilings.

The Name-Mismatch Problem

A lot of the gap isn't about missing documents , it's about documents that don't match your current name, usually after marriage or divorce. The Center for American Progress estimates 69 million American women fall into this category.

Sources: Brennan Center for Justice (2024); CDCE, University of Maryland (2025); U.S. Dept. of State; Center for American Progress.

XVIII. Case Study: Fish v. Kobach (Kansas)

What Kansas Did

In 2011, Kansas passed a law requiring documentary proof of citizenship to register, basically this bill, at the state level. It took effect in 2013.

What Happened to Real People

Between 2013 and 2016, over 35,000 Kansans , about 14% of all new registrants , had their registration suspended for lacking documents, even though they'd signed the standard citizenship attestation under penalty of perjury. Many were never even told extra documents were required.

How the Courts Ruled

- 2016 - A federal court blocks the law, calling it likely illegal under the NVRA.
- 2018 - After a full trial, the judge rules against Kansas. The state's own evidence found only 127 suspected noncitizen registrations out of 1.8 million voters over 18 years , and most of those were clerical errors, not fraud.
- 2020 - The appeals court unanimously agrees: the number of citizens who lost access “cannot be justified by the scant evidence of noncitizen voter fraud.”
- 2020 - The Supreme Court declines to hear the case. Kansas later pays \$1.4 million in legal fees.

Why This Case Matters Here

The courts set a two-part test: a state must show that (1) a real number of noncitizens are actually registering, and (2) no less-burdensome method could fix it. Kansas failed both. Because this bill changes federal law instead of layering a state law on top of it, supporters say that legal problem disappears. Opponents say the same underlying facts , thousands of blocked citizens, a handful of real cases , would just show up again at a national scale.

Sources: *Fish v. Kobach*, 189 F. Supp. 3d 1107 (D. Kan. 2016); *Fish v. Schwab*, 957 F.3d 1105 (10th Cir. 2020), cert. Denied.

XIX. Arizona v. Inter Tribal Council of Arizona (2013): The Constitutional Backdrop

No discussion of this agenda is complete without understanding the Supreme Court's 2013 decision in *Arizona v. Inter Tribal Council of Arizona*. In 2004, Arizona voters approved Proposition 200, which directed state election officials to reject any voter registration application — including the Federal Form — that was not accompanied by documentary proof of citizenship.

The Supreme Court, in a 7-2 opinion by Justice Scalia, held that Arizona's documentary proof-of-citizenship requirement was preempted by federal law because the NVRA requires states to accept and use the Federal Form as sufficient for federal voter registration. Critically, the Court grounded this holding in the Elections Clause of Article I, Section 4, which the majority described as giving Congress a broad and paramount power to displace conflicting state election law when it legislates.

However, the Court also left states — and Congress — a path forward. It suggested that a state wishing to impose a documentary proof requirement could petition the Election Assistance Commission to add that state-specific instruction to the Federal Form, and separately, the Court explicitly noted that its holding did not prevent states from applying a proof-of-citizenship requirement to voter registration for state and local elections, since the Elections Clause only reaches federal elections.

This is the central legal tension animating the SAVE America Act: the Qualifications Clauses of Article I assign the power to set voter qualifications (including citizenship) to the states, while the Elections Clause gives Congress broad power over the "times, places and manner" of federal elections, including registration procedure. Whether a documentary proof-of-citizenship mandate is a "qualification" (state turf) or a "manner" regulation (congressional turf) remains genuinely contested among legal scholars, and it is precisely this ambiguity that Congress can resolve through legislation — which is what H.R. 7296/S. 3752 attempts to do at the federal level, essentially codifying nationally what *Arizona v. ITCA* prevented a single state from doing so unilaterally.

XX. A Comparison Abroad: India's Voter ID System

Delegates looking for a comparison beyond the U.S. should look at India, the world's largest democracy, which has run a national voter ID system for over thirty years.

How It Works

India's Election Commission has issued a free, lifetime voter ID card since 1993, the same year the NVRA passed. It now covers about 95% of registered voters, including a digital version with a QR code.

Two Ideas Worth Studying

- India enrolls citizens proactively, going door to door, instead of asking each person to dig up their own paperwork. That flips the burden this bill places on the citizens.
- India's Election Commission has told its own Supreme Court that a **national biometric ID card is not proof of citizenship , only proof of identity**. That's a distinction worth remembering in this debate too.

What Does and Doesn't Translate

India proves a universal photo-ID system can work at massive scale , its electorate is over 900 million people. But India has one national election body. The U.S. has about 8,000 separate state and local ones. That's exactly why cost and timeline are such a big objection to this bill in the U.S.

Sources: Election Commission of India, eci.gov.in; Press Information Bureau, Government of India (2025–26).

XXI. Reality Checking the Fraud Claim

Since 2025, several Republican secretaries of state have checked their voter rolls against a federal citizenship database. Here's what they actually found.

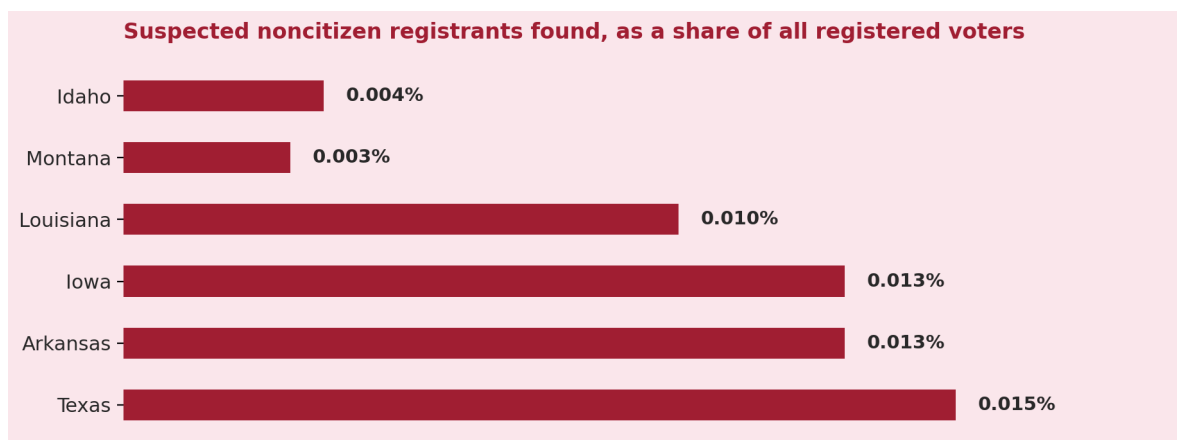


Figure 3. Every state audit lands in roughly the same place: real, but extremely rare.

Louisiana's Republican Secretary of State, Nancy Landry, put it plainly after reviewing forty years of records: noncitizen registration is not a systemic problem in her state , even as she kept pursuing every confirmed case. In Texas, reporters found the state's early noncitizen numbers were inflated, and the governor's office later softened its own language from “confirmed” to “potential” noncitizens.

Sources: Louisiana, Iowa, Arkansas, Montana, Idaho, and Texas secretary-of-state announcements (2025–26); ProPublica/Votebeat/Texas Tribune investigation.

XXII. Implementation Concerns Election Officials Have Raised

Beyond the ideological debate, nonpartisan analysis has flagged practical administrative questions the bill does not fully resolve. The Bipartisan Policy Center notes that the bill's provisions for in-person delivery of documentary proof for mail registrants would largely nullify the convenience benefit of mail-in registration, and separately observes that the legislation does not clearly specify how proof of citizenship should be delivered for online registration, creating a risk of inconsistent implementation across states. It also warns the bill would expose election officials to heightened legal and criminal liability for registration errors made in good faith — a concern that has led some state election administrators, of both parties, to caution that the private right of action and criminal penalties could deter qualified people from serving as election workers at all.

XXIII. The Way Forward

The Senate's task on this agenda is not simply to vote the bill up or down as introduced. Historically, similarly ambitious voter-eligibility legislation has stalled in the Senate for lack of sixty votes, which is precisely why lawmakers are now also exploring the reconciliation-and-incentive-funding pathway described above. A realistic committee outcome may therefore look less like a clean party-line bill and more like a negotiated substitute: a narrower documentary-proof mandate, a broadened list of acceptable documents, explicit accommodations for name changes and tribal citizens, funding for state implementation costs, safe-harbor protections for election officials acting in good faith, and a phased timeline — or, alternatively, an incentive-based grant program that avoids an outright mandate altogether.

Whichever path a delegate's bloc pursues, strong legislation on this agenda will need to answer not only "should documentary proof be required," but "how is this actually implemented, funded, and defended in court without disenfranchising the very citizens it claims to protect."

XXIV. Questions the Debate Must Address

Before you start researching, your bloc should be able to answer all of these.

01

Your core stance

Documents, database checks, or the current system , and why?

02

The documentation gap

What accommodation do you propose for the 21–28 million citizens who lack ready access to documents?

03

The name-mismatch problem

How do you address the burden on the 69 million women, and transgender Americans, whose ID doesn't match their name?

04 Who pays

The federal government, the states, or a shared formula , and on what timeline?

05 Legal mechanism

Do you amend the NVRA like this bill does, or use a different legal path, and can you defend it?

06 The 60 vote math

Can your solution realistically get sixty votes, or does it need reconciliation?

07 Enforcement

What happens to states that don't comply, and individuals who lie on their attestation?

08 The six exempt states

How do you treat Idaho, Minnesota, New Hampshire, North Dakota, Wisconsin, and Wyoming, which are exempt from the underlying law?

XXV. Bibliography

- Congress.gov. “[SAVE America Act, S. 3752].” <https://www.congress.gov/bill/119th-congress/senate-bill/3752>.
- Congressional Research Service. “[Congressional Research Service Reports].” <https://crsreports.congress.gov/>.
- U.S. Department of Justice. “[National Voter Registration Act of 1993].” <https://www.justice.gov/crt/national-voter-registration-act-1993-nvra>.
- Supreme Court of the United States. “[Arizona v. Inter Tribal Council of Arizona].” <https://supreme.justia.com/cases/federal/us/570/1/>.
- Brennan Center for Justice. “[The Truth About Noncitizen Voting].” <https://www.brennancenter.org/our-work/research-reports/noncitizen-voting-illegal-rare>.
- Bipartisan Policy Center. “[Elections and Voting Policy].” <https://bipartisanpolicy.org/policy-area/elections/>.
- Election Commission of India. “[Official Website].” <https://eci.gov.in/>.

